GRIMES COUNTY COMMISSIONERS COURT

OFFICIAL MINUTES — WEDNESDAY, OCTOBER 21, 2026

The Grimes County Commissioners Court met on Wednesday, October 21, 2026, at 9:00 A.M. Members Present: Commissioner Chad Mallett, Commissioner David Tullos, Commissioner Michael Raska, Commissioner Phillip Cox. Commisioner Mallett called the meeting to order.

Call to Order

Invocation

Pledge of Allegiance to the U.S. Flag

Pledge of Allegiance to the Texas Flag

Public Comments

Bob Raley of the Roans Prairie area off Highway 179 addressed the court regarding road conditions on Highway 30 and access roads to industrial sites. He reported that increased traffic from the TeraFab facility and heavy trucks has created hazardous conditions, with dirt and mud accumulating on the pavement and becoming a safety concern during rain events. Raley cited similar issues at the Republic Services facility near the county dump and drew on his twenty-five years of transportation safety experience in the oil industry to recommend that the county coordinate with the Department of Transportation to require either paved access roads or ground stabilization measures at industrial and disposal sites to prevent debris from being tracked onto public highways. He concluded by thanking Commissioner Tullos for his service to the county.

We look forward to hearing from the citizens of Grimes County. If you wish to make public comments you will need to submit a Public Participation Form prior to the start of the meeting and give it to the County Clerk. Public comments will be limited to 2 minutes per person.

Consent Agenda Items

Commissioner Chad Mallett presented six consent agenda items for consideration: approval of the proposed replat of Fiveland Subdivision Lots 41 and 42 in Precinct 1; renewal and amendment of annual contracts; acceptance of justice of the peace liability desk reviews, bank reconciliations, and omni reports for justices three and one covering April through June 2026; a fiscal year 2025 and 2026 NFC employee benefit desk review; approval of the treasurer's list of claims and bills; approval of payroll; and approval of budget amendments or line item transfers.

Motion by Commissioner Phillip Cox to Approve the consent agenda items (Items 1–6: replat of Fiveland Subdivision Lots 41 and 42; renew and amend annual contracts; review and accept JP3 and JP1 desk reviews and NFC employee benefit desk review; approve Treasurer's List of Claims and Bills; approve payroll; approve budget amendments and/or line-item transfers). Seconded by Commissioner David Tullos. Carried (4–0–0–1).

1. **Consider and approve the proposed replat of Fiveland Subdivision, lots 41 and 42 located in Precinct 1.**
2. **Take action to renew and amend annual contracts.**

3. **Review and accept:**
    - **Justice of the Peace 3 Liability Desk Review**
    - **Justice of the Peace 3 Bank Reconciliations and OMNI Report April-June 2026 Desk Review**
    - **Justice of the Peace 1 Liability Desk Review**
    - **Justice of the Peace 1 Bank Reconciliations and OMNI Report April-June 2026 Desk Review**
    - **FY25 & FY26 NFC Employee Benefit Desk Review**
4. **Consider and take action to approve the Treasurer's List of Claims and Bills.**
5. **Consider and take action to approve payroll.**
6. **Consider and take action to approve Budget Amendments and/or Line-Item Transfers.**

Presentation of Monthly Departmental Reports:

7. **Veterans Services, Emergency Management Services — Veterans Services, Emergency Management Services**

    Veterans Services Coordinator Jay Lafferty reported on September activities, noting that phone inquiries had increased as gas prices rose. The office received 22 phone contacts, 13 office visits, and five email inquiries during the month. Lafferty stated that three new claims were initiated and two existing claims were updated, which he characterized as a good monthly volume. He thanked the court for its continued support. EMC/Fire Marshal Dione Bumpous then presented the Emergency Management Services report, highlighting National Fire Prevention Week activities in early October that focused on safe practices with electronic devices and chargers. Bumpous reported that the fire marshal's office participated in National Night Out in Anderson, which was well-received by children and successfully coordinated with the Sheriff's office. The office responded to three fires during the burn ban that spread to adjacent properties, a garbage truck rollover on FM 244 requiring extended hazmat cleanup that left the bridge partially closed, and an oil spill on Highway 90 near FM 39. Bumpous noted completion of the fire marshal course with all required state certifications and reported ongoing work on the July 2026 flooding project following recent FEMA and TEDM approvals and meetings. Commissioner David Tullos inquired whether an assistant position had been filled, and Bumpous indicated that interviews were upcoming.

Presentation of Monthly Commissioners Court Liaison Reports:

8. **County Judge: Maintenance, HR, IT, Emergency Management, Road Department, Veterans Services, Elections, Navasota Grimes County Chamber of Commerce;**

    Commissioner Pct. 2: Animal Shelter, Historical Commission, Navasota Grimes County Chamber of Commerce, Bluebonnet Groundwater Conservation District Board;

    Commissioner David Tullos noted the presence of representatives from the Historical Commission and the Chamber of Commerce in the audience and invited them to speak for themselves.

    Commissioner Pct. 3: 911 Addressing/Permits/Environmental/Solid Waste, BVCOG Solid Waste Advisory Committee;

Commissioner Pct. 4: Fairgrounds, Hospital Contracts, EMS Services, Health Resource Center

Commissioner Phillip Cox reported that the Fairgrounds hosted two cattle shows and three private events, with Patriots of Texas scheduled for October 30th and 31st and an AgriLife continuing education event planned. The hospital, now rebranded as CommonSpirit Grimes St Joseph, is nearly finished patching its roof, replacing hot water storage tanks, and removing asbestos from the radiology area. Commissioner Cox noted that two new ambulances are expected to arrive the second week of November and will require several weeks for outfitting and testing. He indicated that ongoing gaps in ambulance availability will require attention in the next budget cycle.

Navasota Grimes County Chamber of Commerce Executive Director - Mariana Almanza-Cook — Mariana Almanza-Cook, Navasota Grimes County Chamber of Commerce

9. **Consider and approve the "Support Your Local Chamber of Commerce Day" Proclamation.**

Commissioner Chad Mallett introduced the proclamation for Support Your Local Chamber of Commerce Day. Mariana Almanza-Cook presented on behalf of the Grimes County Chamber of Commerce, noting this was the second time the Commissioners Court had considered the proclamation and that the timing aligned perfectly with the actual day. Almanza-Cook read the full proclamation, which recognized chambers of commerce as champions of communities and highlighted the Navasota Grimes County Chamber of Commerce's history since its charter on March 6, 1916. The proclamation noted the chamber now has over 300 active members representing the 802 square miles of Grimes County and plays an important role in enhancing the county's economic vitality and quality of life. The proclamation designated October 21, 2026, as Support Your Local Chamber of Commerce Day and encouraged Grimes County residents to learn more about the chamber and its support of local businesses.

Motion by Commissioner David Tullos to Approve the 'Support Your Local Chamber of Commerce Day' Proclamation proclaiming 10/21/2026 as Support Your Local Chamber of Commerce Day in Grimes County. Seconded by Commissioner Phillip Cox. Carried (4–0–0–1).

10. **Economic Development Update for the 3rd Quarter: April - June 2026, and the 4th Quarter: July - September 2026.**

Mariana Almanza-Cook and Grimes County Chamber of Commerce Kat Dimmel presented an economic development update covering the second and third quarters of 2026. Almanza-Cook reported that during April through June, she and Dimmel attended numerous community meetings and events, including the Texas Historical Commission's Real Places Conference, which provided valuable resources for promoting tourism and historic preservation in Grimes County. The chamber welcomed a new membership coordinator who successfully expanded outreach efforts with multiple coffees and community events monthly. In July through September, Almanza-Cook participated in the Grimes County Citizens Academy held by the sheriff's department, which she described as highly educational and beneficial to understanding county operations and law enforcement work. During this period, the chamber also launched planning for a junior ambassador program designed to introduce young people to local businesses and the chamber's role in the community, involving meetings with school principals, superintendents, and counselors. Almanza-Cook highlighted the Taste of Grimes event as a major success for a first-time initiative, drawing 250 attendees and featuring 16 local restaurants and wineries at the fairgrounds. The chamber partnered with Bryan College Station and Woodlands chambers for guidance, and the event provided significant support to Navasota High School's culinary arts program, with students earning $400 and receiving an additional $1,500 contribution from the

chamber. Dimmel concluded the report by inviting commissioners to upcoming events, including a chamber mixer on National Support Your Chamber Day, a realtor and developer's breakfast on October 28 with approximately 120 registrations, anniversary celebrations and ribbon cuttings at various local businesses in November, and additional coffees and events scheduled for December at locations throughout Grimes County.

Grimes County Historical Commission Chairman - Kathy Wells — Kathy Wells, Grimes County Historical Commission

11. **Grimes CHC Regional Workshop follow up report.**

    Historical Commission Chairman Kathy Wells reported that the Grimes County Historical Commission hosted a regional workshop on October 10, 2026, at the courthouse courtroom, attracting 32 presenters and attendees from nine counties. Speakers from the Texas Historical Commission, Texas A&M, and local experts addressed topics including historical resource surveys, tax credits, cemetery preservation, and archaeology. The day included a catered lunch and tours of the Anderson Baptist Church and Fanthorpe Inn, with many attendees expressing interest in returning for future events. The workshop cost $358.70, under budget.

Grimes County EMC/Fire Marshal - Dione Bumpous — Dione Bumpous, Grimes County EMC/Fire Marshal

12. **Discuss and take action on Interlocal Agreement between Grimes County and the Town of Anderson for Fire Marshal services.**

    Fire Marshal Dione Bumpous presented an interlocal agreement to provide fire marshal services to the town of Anderson, noting that the arrangement would ensure consistent code enforcement across the county and city and reduce confusion for residents and emergency responders. Bumpous reported that Anderson's town council had approved the agreement on October 8. County Attorney Megan Barcak confirmed she had reviewed the document and noted it was dated for the eighth, leaving the decision on retroactive approval to the court.

    Motion by Commissioner David Tullos to Approve the Interlocal Agreement between Grimes County and the Town of Anderson for Fire Marshal services. Seconded by Commissioner Phillip Cox. Carried (4–0–0–1).

    See Exhibit A.

13. **Discuss and take action on Interlocal Agreement between Grimes County and the Town of Bedias for Fire Marshal services**

    EMC/Fire Marshal Dione Bumpous presented an interlocal agreement with the Town of Bedias for fire marshal services, noting that Bedias had met on October 14 and voted to approve the agreement.

    Motion by Commissioner David Tullos to Approve the Interlocal Agreement between Grimes County and the Town of Bedias for Fire Marshal services. Seconded by Commissioner Phillip Cox. Carried (4–0–0–1).

    See Exhibit B.

Grimes County Sheriff's Office - Chief Deputy Martha Smith — Martha Smith, Grimes County Sheriff's Office

14. **Consider and take action to establish Fund 75 Sheriff's Forfeiture Account, including the creation of the applicable revenue and expenditure line items.**

Commissioner Mallet stated Agenda Item 14 will be moved to another date.

Grimes County IT Director - Gregg Cannon — Gregg Cannon, Grimes County IT

15. **Discuss and take action to approve the JustFOIA software contract for the County Attorney and Sheriff's Office for FOIA requests.**

    IT Director Gregg Cannon presented the JustFOIA software contract for the County Attorney and Sheriff's Office to handle Freedom of Information Act requests. Cannon noted that all seven items on the agenda had been approved during the budget process and that while some final adjustments to pricing were necessary as additional modules were identified for full implementation, contingency funds were available to cover those costs. He highlighted that the county had already achieved savings of twenty-four thousand dollars on a storage appliance contract and expected to save an additional seven thousand dollars annually once one of the contracts was approved. Cannon reported that he had recently spoken with County Attorney Megan Barcak about the possibility of revising the contract to require only one license instead of two, which could result in further savings, though the pricing structure for a single license was not yet known. County Attorney Megan Barcak requested approval of the contract as presented, stating that she and Martha would subsequently determine whether one or two licenses were actually needed. County Auditor Jessi Murphy requested authorization for her office to make any necessary adjustments to the contract and emphasized that the sales tax exempt form must be submitted with the signed contract to avoid tax charges.

    Motion by Commissioner David Tullos to Approve the JustFOIA software contract for the County Attorney and Sheriff's Office for FOIA requests, and authorize the County Auditor to make the necessary changes. Seconded by Commissioner Phillip Cox. Carried (4–0–0–1).

16. **Discuss and approve Motorola MSA agreement for WatchGuard Saas (Cloud Edition) software and hardware approved in the 2027 budget.**

    IT Director Gregg Cannon explained that Motorola is transitioning all clients from on-premise WatchGuard software to a cloud-based version. The upgrade will expand capabilities and allow the county to equip constables with body cameras and car cameras on the same system. By merging two separate bids into one contract, overlapping costs were waived, resulting in approximately seven thousand dollars in annual savings. County Attorney Megan Barcak requested clarification on signing authority, and the court authorized the county judge as signatory for the agreement.

    Motion by Commissioner David Tullos to Approve the Motorola MSA agreement for WatchGuard SaaS (Cloud Edition) software and hardware, and authorize the County Judge as signatory. Seconded by Commissioner Phillip Cox. Carried (4–0–0–1).

17. **Discuss and approve UVT (drone) terms and conditions document.**

    IT Director Gregg Cannon explained that UVT provides drone services for the sheriff's office and presented the contract renewal for approval. County Attorney Megan Barcak noted the document would require an authorized signatory.

    Motion by Commissioner David Tullos to Approve the UVT (drone) terms and conditions document and authorize the County Judge as signatory. Seconded by Commissioner Phillip Cox. Carried (4–0–0–1).

18. **Discuss and approve VC3 MSA; VC3 was approved in the 2027 budget.**

    IT Director Gregg Cannon explained that VC3 is a compliance company that helps the county meet government regulations, protecting grants and insurance coverage. Commissioner David

Tullos asked about recommended changes to the agreement. County Attorney Megan Barcak reported that the company has agreed to the requested modifications and proposed adding them through an addendum, requesting authorization for her office to submit the language for signature.

Motion by Commissioner David Tullos to Ratify the VC3 MSA agreement and order, and authorize the County Attorney to take necessary steps to add an addendum incorporating the requested changes. Seconded by Commissioner Phillip Cox. Carried (4–0–0–1).

19. **Discuss and approve eForce license agreement; approved by County Attorney and in budget hearings.**

    IT Director Gregg Cannon presented eForce, a product to replace the county's longstanding Crimes system. Cannon noted that the upgrade has been strongly advocated for and that County Attorney Megan Barcak has approved the license agreement. Barcak confirmed the contract requires a designated signature from the county judge and indicated necessary changes would be made.

    Motion by Commissioner David Tullos to Approve the eForce license agreement and authorize the County Judge as signatory. Seconded by Commissioner Phillip Cox. Carried (4–0–0–1).

20. **Discuss and approve Master Service Agreement for sheriff's office Watch Systems LLC for 2027.**

    IT Director Gregg Cannon explained that Watch Systems is software used to track sex offenders, and the agreement represents a renewal of the existing contract for the coming year. Commissioner David Tullos asked whether county judge authorization would be required for a signatory. County Attorney Megan Barcak clarified that the sheriff typically signs agreements relating solely to the sheriff's office and does not require additional authorization.

    Motion by Commissioner David Tullos to Approve the Master Service Agreement for the Sheriff's Office with Watch Systems LLC for 2027. Seconded by Commissioner Phillip Cox. Carried (4–0–0–1).

21. **Discuss and approve Master Service Agreement for Sheriff's office Covert software.**

    IT Director Gregg Cannon reported that the sheriff's office Criminal Investigation Division uses software to track investigators for officer safety purposes. The department previously used a product called Callio but is switching to Covert because it is cheaper and offers features the staff prefers. Commissioner Michael Raska asked which agenda item was the county saving $24,000? Mr. Cannon stated it is not on an agenda item today, it is on a storage appliance contract. Following the discussion, a question arose regarding contract approval procedures and signature authority. County Attorney Megan Barcak clarified that all contracts must be approved by Commissioners Court to bind the county, regardless of dollar amount, and that such approval must occur before execution. Barcak explained that her office reviews contracts first, after which they are placed on the court agenda for approval before being signed. IT Director Cannon noted that the county judge had expressed concern about requiring court approval for very small contracts while ensuring larger agreements receive attention, but Barcak confirmed that only Commissioners Court approval binds the county on any contract value, and that the court determines who may sign on its behalf.

Motion by Commissioner David Tullos to Approve the Master Service Agreement for the Sheriff's Office Covert software. Seconded by Commissioner Phillip Cox. Carried (4–0–0–1).

Grimes County Engineer - Jon Steiber — Jon Steiber, Grimes County Engineer

22. **Road Department Report.**

    Commissioner David Tullos requested moving agenda item 22 to the first November meeting to allow Jon Steiber to be present for questions.

Grimes County Auditor - Jessi Murphy — Jessi Murphy, Grimes County Auditor

23. **Consider and take action to approve the PlanetBids Contract and authorize County Judge as Signatory.**

    County Auditor Jessi Murphy presented the PlanetBids contract, a bid platform software approved during the budget process and requested by the county. She noted it is a multiyear contract spanning three years. Commissioner David Tullos confirmed that all requested changes had been incorporated into the agreement.

    Motion by Commissioner David Tullos to Approve the PlanetBids contract and authorize the County Judge as signatory. Seconded by Commissioner Chad Mallett. Carried (4–0–0–1).

Grimes County Commissioner Precinct 4 - Phillip Cox — Phillip Cox, Grimes County Commissioner Precinct 4

24. **Discuss, review, and take action to acknowledge new officers, accept resignation and make new appointment to the Grimes County Child Welfare Board.**

    Child Welfare Board Chairperson Tanya Tullos approached the podium to address the Commissioners Court regarding changes to the Grimes County Child Welfare Board. Tullos announced the resignation of Talitta Coleman, who had served on the board for over ten years and held the positions of chairperson and vice chair during her tenure. The Commissioners Court expressed appreciation for Coleman's dedication and leadership in support of the children and families of Grimes County. Tullos then announced the newly elected officers: Tanya Tullos as chairperson, Susan Boudreaux as vice chairperson, Gail Sowell as treasurer, and Sherry Fauth as secretary. Tullos expressed honor in her new role and thanked all board members for their generous service and commitment to supporting the community's children and families. She also thanked the Commissioners Court for their continued support, noting that such partnership helps the board carry out its mission effectively.

    Motion by Commissioner Phillip Cox to Appoint Megan Barcak to the Grimes County Child Welfare Board. Seconded by Commissioner David Tullos. Carried (4–0–0–1).

Grimes County Judge - Joe Fauth III — Joe Fauth III, Grimes County Judge

25. **Consider and approve the Resolution to receive the Grant for the Indigent Defense Program and authorize the County Judge as signatory.**

    Commissioner Chad Mallett presented the resolution to receive the grant for the indigent defense program and authorize the county judge as signatory.

    Motion by Commissioner David Tullos to Approve the Resolution to receive the Grant for the Indigent Defense Program and authorize the County Judge as signatory. Seconded by Commissioner Phillip Cox. Carried (4–0–0–1).

    See Exhibit C.

26. **Consider and take action regarding the Burn Ban and authorize the County Judge as signatory.**

    Not currently under a burn ban.
    Commissioner Mallett introduced the burn ban agenda item.

    No action.

A motion by Commissioner David Tullow to adjourn the meeting was made, seconded by Commissioner Michael Raska, and carried. The meeting adjourned at 9:50 AM.

THE OFFICIAL MINUTES OF THE GRIMES COUNTY COMMISSIONERS COURT ON October 21st, 2026, ARE HEREBY APPROVED.

_____

County Clerk, Barbara Kimich

EXHIBITS

Exhibit A — D BUMPOUS - ILA Anderson 26.pdf

Exhibit B — D BUMPOUS - ILA FM Bedias 2026.pdf

Exhibit C — GRIMES COUNTY INDIGENT DEFENSE GRANT RESOLUTION FY 27.pdf

INTERLOCAL AGREEMENT FOR FIRE MARSHAL SERVICES

This Contract ("Agreement"), effective 10/8, 2026 is entered into between Grimes County and the Town of Anderson, Texas, pursuant to the authority granted and in compliance with the Interlocal Cooperation Act, Chapter 791, Texas Government Code.

1. Contracting Parties: The Receiving Party ("RECEIVING PARTY") is the Town of Anderson, Texas. The Performing Party ("PERFORMING PARTY") is Grimes County, Texas.

2. Statement of Services to be Performed:

Fire Marshal Service. PERFORMING PARTY agrees to provide Fire Marshal services within the corporate limits of RECEIVING PARTY.

3. Term of Contract: This AGREEMENT shall have a five-year term, but the Contract shall be reviewed annually by the Parties to ascertain its continuing appropriateness.

4. Termination: Either party may, by providing written notice to the other party thirty (30) days in advance, terminate this AGREEMENT in whole or in part at any time.

5. Miscellaneous:

(a) The UNDERSIGNED CONTRACTING PARTIES certify that:

(i) the services specified above are necessary and essential for activities that are properly within the statutory functions of the affected parties;

(ii) the proposed arrangements serve the interest of efficient and economical administration of the contracting parties;

(iii) During the term of this agreement, the RECEIVING PARTY shall provide the Fire Marshal of PERFORMING PARTY a map of the municipality including streets marked for Identification. It Is expressly understood between the parties that the County shall have no obligation to provide any service or work, whether related to Fire Marshal duties, on any city/town street not described therein; and

(iv) It is understood that in providing any services described herein, that all employees of the County shall remain employees of Grimes County and shall not be considered agents, employees or borrowed servants of RECEIVING PARTY.

(b) RECEIVING PARTY further certifies that it has the authority to contract for the above services by authority granted in Chapter 791 of the Texas Government Code and,

(c) PERFORMING PARTY further certifies that it has the authority to perform the above services contracted by authority granted in Chapter 791 and Section 352.019 of the Texas Government Code.

6. General Provisions:

(a) The Parties agree to comply fully with all applicable federal, state, and local statutes, ordinances, rules, and regulations in connection with the services contemplated under this Agreement. This Agreement is subject to all applicable present and future valid laws governing the same.

(b) This Agreement shall be governed by the laws of the State of Texas, and venue shall be in Grimes County, Texas.

(c) This Agreement contains the entire agreement of the Parties hereto with respect to the matters covered by its terms, and it may not be modified in any manner without the express written consent of the parties.

(d) If any term(s) or provision(s) of this Agreement are held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remainder of the provisions of this Agreement shall remain in full force and effect.

(e) The Parties of this Agreement expressly acknowledge and agree that all monies (if any) paid pursuant to this Agreement shall be paid from budgeted available funds for the current fiscal year of each such entity.

(f) Before any Party may resort to litigation, any claims, disputes, or other matters in question between the Parties to this Agreement shall be submitted to nonbinding mediation.

(g) No Party to this Agreement waives or relinquishes any immunity or defense on behalf of themselves, their directors, officers, employees, and agents as a result of its execution of this Agreement and performance of the functions and obligations described herein.

(h) This Agreement was approved by the governing boards and/or bodies of the respective parties at meetings that were posted and held in accordance with the Texas Open Meetings Act. Texas Government Code, Chapter 551.

The officials signing below are authorized to do so by the respective Parties to this Agreement.

Dated this day 8TH of OCT, 2026.

GRIMES COUNTY

By: _____
Joe Fauth, III, County Judge

TOWN OF Anderson

By: _____
Kason Menges, Mayor

EXHIBIT A

INTERLOCAL AGREEMENT FOR FIRE MARSHAL SERVICES

This Contract ("Agreement"), effective _____, 2026 is entered into between Grimes County and the Town of Bedias, Texas, pursuant to the authority granted and in compliance with the Interlocal Cooperation Act, Chapter 791, Texas Government Code.

1. Contracting Parties: The Receiving Party ("RECEIVING PARTY") is the Town of Bedias, Texas. The Performing Party ("PERFORMING PARTY") is Grimes County, Texas.

2. Statement of Services to be Performed:

   (a) Fire Marshal Service

PERFORMING PARTY agrees to provide Fire Marshal services within the corporate limits of RECEIVING PARTY.

3. Term of Contract: This AGREEMENT shall have a Five-year term, but the Contract shall be reviewed annually by the Parties to ascertain its continuing appropriateness.

4. Termination: Either party may, by providing written notice to the other party thirty (30) days in advance, terminate this AGREEMENT in whole or in part at any time.

5. Miscellaneous:
   (a) The UNDERSIGNED CONTRACTING PARTIES certify that:
      (i) the services specified above are necessary and essential for activities that are properly within the statutory functions of the affected parties;

      (ii) the proposed arrangements serve the interest of efficient and economical administration of the contracting parties;

      (iii) During the term of this agreement, the Mayor of RECEIVING PARTY shall provide the Fire Marshal of PERFORMING PARTY a map of his/her town with streets marked for Identification. It Is expressly understood between the parties that the County shall have no

obligation to provide any service or work, whether related to Fire Marshal duties, on any city/town street not described therein; and

(iv) It is understood that in providing any services described herein, that all employees of the County shall remain employees of Grimes County and shall not be considered agents, employees or borrowed servants of RECEIVING PARTY.

(b) RECEIVING PARTY further certifies that it has the authority to contract for the above services by authority granted in Chapter 791 of the Texas Government Code and,

(c) PERFORMING PARTY further certifies that it has the authority to perform the above services contracted by authority granted in Chapter 791 and Section 352.019 of the Texas Government Code.

6. General Provisions:

The Parties agree to comply fully with all applicable federal, state, and local statutes, ordinances, rules, and regulations in connection with the services contemplated under this Agreement. This Agreement is subject to all applicable present and future valid laws governing the same.

This Agreement shall be governed by the laws of the State of Texas, and venue shall be in Grimes County, Texas.

This Agreement contains the entire agreement of the Parties hereto with respect to the matters covered by its terms, and it may not be modified in any manner without the express written consent of the parties.

If any term(s) or provision(s) of this Agreement are held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remainder of the provisions of this Agreement shall remain in full force and effect.

The Parties of this Agreement expressly acknowledge and agree that all monies (if any) paid pursuant to this Agreement shall be paid from budgeted available funds for the current fiscal year of each such entity.

Before any Party may resort to litigation, any claims, disputes, or other matters in question between the Parties to this Agreement shall be submitted to nonbinding mediation.

No Party to this Agreement waives or relinquishes any immunity or defense on behalf of themselves, their directors, officers, employees, and agents as a result of its execution of this Agreement and performance of the functions and obligations described herein.

This Agreement was approved by the governing boards and/or bodies of the respective parties at meetings that were posted and held in accordance with the Texas Open Meetings Act. Texas Government Code, Chapter 551.

The officials signing below are authorized to do so by the respective Parties to this Agreement.

Dated this day 14 **of** October, **2026.**

GRIMES COUNTY

By: _____
Joe Fauth, III, County Judge

TOWN OF BEDIAS

By: _____
Gwen Boullion, Mayor

2027 Grimes County Resolution
Texas Indigent Defense Commission
Formula Grant Program

WHEREAS, under the provisions of the Texas Government Code Section 79.037 and Texas Administrative Code Chapter 173, counties are eligible to receive grants from the Texas Indigent Defense Commission to provide improvements in indigent defense services in the county; and

WHEREAS, this grant program will assist the county in the implementation and the improvement of the indigent criminal defense services in this county; and

WHEREAS, Grimes County Commissioners Court has agreed that in the event of loss or misuse of the funds, Grimes County Commissioners assures that the funds will be returned in full to the Texas Indigent Defense Commission.

NOW THEREFORE, BE IT RESOLVED and ordered that Joe Fauth III is designated as the Authorized Official to apply for, accept, decline, modify, or cancel the grant application for the Indigent Defense Formula Grant Program and all other necessary documents to accept said grant; and

BE IT FURTHER RESOLVED that the County Auditor is designated as the Financial Officer for this grant.

Adopted this 21st day of October, 2026.

Joe Fauth III
Grimes County Judge

Attest: Barbara Kimich

Barbara Kimich
County Clerk